

TERMS OF SERVICE AND PRIVACY POLICY

Company: NexusFlow AI Solutions

Effective Date: October 24, 2023

Last Updated: January 15, 2024

1. TERMS OF SERVICE

1.1 Acceptance of Terms

By accessing or using the NexusFlow AI platform ("The Service"), you agree to be bound by these Terms. If you do not agree, you must discontinue use immediately.

1.2 Eligibility

You must be at least **18 years of age** to use The Service. If you are using The Service on behalf of an organization, you confirm you have the authority to bind that organization to these terms.

1.3 User Account and Security

- **Credentials:** You are responsible for maintaining the confidentiality of your password.
- **Sharing:** Account sharing is strictly prohibited. One license covers one human user.
- **Inactivity:** Accounts strictly inactive for **180 days** will be marked for archival and may require a reactivation fee of **\$25.00 USD**.

1.4 Prohibited Use

Users agree NOT to:

1. Use the API for generating spam or political disinformation.
2. Reverse engineer the underlying neural network weights.
3. Exceed the API rate limit of **500 requests per minute** without an Enterprise license.

1.5 Payment and Refunds (Specific Clause)

NexusFlow offers a "**Conditional Satisfaction Guarantee**."

- **Refunds:** You are eligible for a full refund within **14 days** of purchase ONLY IF you have used less than **1,000 API credits**.
- **Non-Refundable:** If you have used 1,001 credits or more, or if 15 days have passed, no refund will be issued.

- **Enterprise Plans:** All Enterprise contracts are non-refundable once signed, regardless of usage.

1.6 Service Level Agreement (SLA)

- **Uptime:** We guarantee a **99.5% monthly uptime**.
- **Compensation:** If uptime drops below 99.5% in a given calendar month, users will be credited with **5000 free API credits** for the following month. This must be claimed via email within 7 days of the outage.

1.7 Governing Law

These terms shall be governed by the laws of the **State of Delaware, United States**.

2. PRIVACY POLICY

2.1 Data Collection

We collect the following information:

- **Personal Data:** Name, Email address, Billing address.
- **Usage Data:** API prompts, completion outputs, and timestamps.
- **Device Data:** IP address, browser type, and operating system.

2.2 Data Retention Policy

- **Active Accounts:** Data is retained indefinitely while the account is active.
- **Deleted Accounts:** Upon account deletion request, all personal data is permanently erased within **48 hours**.
- **Backup Archives:** Encrypted backups may retain data for up to **30 days** after deletion for disaster recovery purposes only.

2.3 Third-Party Sharing

We do not sell your data. However, we share data with the following sub-processors for functionality:

1. **Stripe:** For payment processing.
2. **AWS (Amazon Web Services):** For cloud hosting and vector storage.
3. **Intercom:** For customer support chat logs.

2.4 Cookie Policy

We use "Session Cookies" to keep you logged in and "Analytics Cookies" to track site performance. Users can opt out of Analytics Cookies via the settings menu.

3. CONTACT INFORMATION

If you have questions regarding these terms or need to file a dispute, please contact us:

- **General Support:** support@nexusflow-dummy.com
 - **Legal & Privacy Inquiries:** legal@nexusflow-dummy.com
 - **Mailing Address:** 123 Innovation Drive, Floor 4, Tech City, Delaware, 19901.
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Suggested Test Questions

Once you ingest this document, ask your chatbot these questions to see if it retrieves the right information:

1. **Simple Fact Retrieval:** "What is the governing law for NexusFlow?"
 - *Expected Answer:* State of Delaware.
2. **Logic/Conditional Test:** "I bought a subscription 5 days ago and used 1,200 credits. Can I get a refund?"
 - *Expected Answer:* No. (Because the limit is 1,000 credits).
3. **Logic/Conditional Test:** "I bought a subscription 10 days ago and used 200 credits. Can I get a refund?"
 - *Expected Answer:* Yes. (Within 14 days and under 1,000 credits).
4. **Specific Detail:** "How much is the fee to reactivate an account that has been inactive for 180 days?"
 - *Expected Answer:* \$25.00 USD.
5. **List Extraction:** "Which third parties do you share data with?"
 - *Expected Answer:* Stripe, AWS, and Intercom.
6. **Timeframe:** "How long do you keep data in backup archives after I delete my account?"
 - *Expected Answer:* 30 days.